

TENTATIVE RULING

Dion L. Johnson

v.

Sylvia Aceves
22CV003240

Defendant's Motion for Summary Judgment

Hearing Date: August 14, 2026

Defendant Sylvia Aceves ("Defendant" or "Aceves") seeks summary judgment on all causes of action in the First Amended Complaint ("FAC") of Plaintiff Dion L. Johnson ("Plaintiff"). The motion does not request summary adjudication. Because this is an "all-or-nothing" motion, Defendant must negate or establish a complete defense to each cause of action alleged against her. Here, the record shows at least one cause of action (Negligent Infliction of Emotional Distress) is not negated, and multiple claims contain triable issues of material fact. Therefore, the motion is **DENIED**, and Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

Legal Standard.

Summary judgment is warranted where there are no triable issues of material fact, and the moving party is entitled to judgment as a matter of law. [Code Civ. Proc. § 437c, subd. (c); see *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.] Courts follow a three-step process when reviewing a motion for summary judgment: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent's claims; and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

In a motion for summary judgment, the initial burden always rests on the moving party to make a prima facie showing that no material factual issues are in dispute. [*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453.] When a defendant files for summary judgment, they satisfy their initial burden if they prove that at least one element of the cause of action cannot be established or that a complete defense exists. [Code Civ. Proc. § 437c, subd. (p)(2).] Failure to meet this burden results in denial of the motion, ending the inquiry. [*Id.*]

To meet the burden of proving that a cause of action cannot be established, a defendant must demonstrate that the plaintiff does not possess, and cannot reasonably obtain, the needed evidence. [*Aguilar*, 25 Cal.4th at 854.] This supporting evidence may include affidavits, declarations, admissions, depositions, answers to interrogatories, and matters subject to judicial notice. [*Aguilar*, 25 Cal.4th at 855.]

Even if the moving defendant meets their burden, the opposing plaintiff can still defeat a summary judgment motion by presenting evidence that raises a triable issue of fact. [*Aguilar*, 25 Cal. 4th at 849-850.] The plaintiff cannot rely solely on allegations or denials in its pleadings;

instead, it must present specific facts indicating a triable issue of material fact concerning the cause of action. [Code Civ. Proc. § 437c, subd. (p)(2).] If the plaintiff fails to do so, summary judgment should be granted.

The court must liberally construe the evidence presented by the party opposing summary judgment, resolving all doubts and making all reasonable inferences in favor of that party [Aguilar, 25 Cal.4th at 844-845]. When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw that favor the opposing party. [Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.] The court's main role is to identify issues, not decide them; only clear and indisputable inferences can lead to a legal resolution. [Ibid.] If evidence conflicts, factual disputes must be resolved during trial. [Ibid.] Furthermore, the trial court cannot weigh evidence as a factfinder would to determine credibility, nor can it grant summary judgment based on credibility assessments. [Id. at 840.]

Discussion.

A. Exhaustion of Administrative Remedies.

“[A] prisoner must exhaust available administrative remedies before seeking judicial relief.” [Wright v. State of Cal. (2004) 122 Cal.App.4th 659, 664.] “A grievance need not include legal terminology or legal theories unless they are in some way needed to provide notice of the harm being grieved. A grievance also need not contain every fact necessary to prove each element of an eventual legal claim. The primary purpose of a grievance is to alert the prison to a problem and facilitate its resolution, not to lay groundwork for litigation.” [Griffin v. Arpaio (9th Cir. 2009) 557 F.3d 1117, 1120.]

First, Defendant argues that Plaintiff failed to exhaust his claims because the grievance he submitted on December 12, 2022, referenced only the March 11, 2022, incident between the parties and did not allege that Defendant spread the false accusations to inmates. [Motion at 10-11; Defendant's Separate Statement of Undisputed Facts (“Defense Fact(s)”) 18-26.] Plaintiff disputes Defendant's contentions. [Plaintiff's Response to Defense Facts 24-25.] On this ground, Defendant fails to meet her initial summary-judgment burden. Defendant ignores that Plaintiff stated in his grievance that Defendant “falsely accused” him of “sexual [misbehavior].” [Defense Fact 18.] Defendant also omits from its papers that Plaintiff stated: “Staff Complaint: (Sexual misconduct...defamation...and loss of pay).” [Id.] Plaintiff's statements in his grievance rebut Defendant's position that insufficient information was presented because Plaintiff did not include that Defendant had reported the allegations to other inmates. Plaintiff's grievance provided sufficient information to “alert the prison to a problem and facilitate its resolution, not to lay groundwork for litigation.” [Griffin v. Arpaio (9th Cir. 2009) 557 F.3d 1117, 1120.]

Second, Defendant similarly argues that Plaintiff failed to comply with the California Tort Claims Act by failing to include any statements made to an inmate after March 11, 2022. [Motion at 12.] Again, Defendant fails to meet her summary judgment burden. When asked to explain why he believes that the State is responsible for damages or injury, Plaintiff stated in his Government Claim form that the California Prison Industry Authority (“CALPIA”) “allow[ed] Aceves to assassinate [Plaintiff's] character by promoting this falsehood to S[u]pervisors and

inmates alike.” [Defense Facts 23-25; Plaintiff’s Response to Defense Facts 24-25 (citing Exh. B at 1).] The “falsehood” is Defendant’s alleged accusation of Plaintiff “making sexually suggestive gestures with his tongue...” [*Ibid.*]

Accordingly, Defendant fails to meet her summary-judgment burden because she did not conclusively negate that Plaintiff failed to exhaust his administrative remedies and comply with the California Tort Claims Act. Plaintiff stated in his grievance and Government Claim form that Defendant made false statements to others about his alleged conduct. Defendant thus cannot defeat the entire defamation cause of action, and summary judgment is not warranted.

B. Privilege Under Civil Code Sections 47, subd. (c), and 47.1.

Defendant argues that her statements to supervisors are privileged under the common-interest privilege and Civil Code section 47.1, and that Plaintiff cannot prove actual malice. [Motion at 13.]

Defendant’s argument fails because she made no showing that Civil Code section 47.1 retroactively applies. That statute provides that a “communication made by an individual, without malice, regarding an incident of sexual assault, harassment, or discrimination is privileged under Section 47.” Section 47 is the common interest privilege. It is undisputed that the alleged defamatory statements occurred in 2022 [*see* Defense Facts 1-4, 21, 23], which is before section 47.1 was enacted in 2023 and became effective on January 1, 2024 [Assem. Bill No. 933 (2023-2024 Reg. Sess.)]. “In construing statutes, there is a presumption against retroactive application unless the Legislature plainly has directed otherwise by means of express language of retroactivity or...other sources [that] provide a clear and unavoidable implication that the Legislature intended retroactive application.” [*Quarry v. Doe I* (2012) 53 Cal.4th 945, 955 (internal quotes and citations omitted).] Defendant thus fails to meet her summary-judgment burden by failing to show section 47.1’s retroactivity.

Even if this Court assumes, for the sake of argument, that Defendant met her summary-judgment burden by showing that the common-interest privilege [Civ. Code §§ 47 and 47.1] bars Plaintiff’s defamation claims against her, Plaintiff’s evidence raises triable factual issues that Defendant lacked reasonable grounds for her statements or acted in reckless disregard—both forms of “actual malice.” [*Noel v. River Hills Wilsons, Inc.* (2003) 113 Cal.App.4th 1363, 1371 (“actual malice” could be shown with evidence “that the defendant lacked reasonable grounds for belief in the truth of the publication and therefore acted in reckless disregard of the plaintiff’s rights.”); *Christian Research Institute v. Alnor* (2007) 148 Cal.App.4th 71, 92 (“A defamation plaintiff may rely on inferences drawn from circumstantial evidence to show actual malice.”).] The disputed facts that require a trial include Defendant’s inconsistent allegations of Plaintiff’s conduct [Plaintiff’s Response to Defense Facts 5, 9-10, 32], Defendant’s dissemination of explicit allegations to incarcerated individuals [Plaintiff’s Exh. E], and inconsistencies during the CALPIA investigation [Plaintiff’s Exh. G; Plaintiff’s Response to Defense Facts 13, 19, 32].

For those reasons, Defendant’s arguments fail, and summary judgment is not warranted.

C. Negligent Infliction of Emotional Distress.

Defendant argues that Plaintiff's negligent infliction of emotional distress claim fails because he checked "Intentional Tort" on a Judicial Council form and did not "allege negligence." [Motion at 18:26-27.] Defendant's theory is about the content of the FAC, rather than whether Plaintiff has evidence to support this cause of action.

"A pleading should be judged by the substance of its allegations rather than its label. It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called." [*Malott v. Summerland Sanitary Dist.* (2020) 55 Cal.App.5th 1102, 1110 (internal quotes and citations omitted).] Here, the FAC expressly alleges negligent conduct. [See FAC at ¶¶ 30 and 32; *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588 (the negligent causing of emotional distress is a tort of negligence, rather than an independent tort).] Defendant presents no merits-based challenge to any negligence element. Because Defendant's motion challenges only the label of the claim, and California permits pleading in the alternative, she has not negated the cause of action. The motion is denied.

D. Punitive Damages.

Defendant challenges punitive damages solely on the element of malice. That is insufficient on summary judgment because she does not address oppression or fraud under Civil Code section 3294. Thus, Defendant failed to shift the burden. Even if she did, Plaintiff's evidence, as discussed in section B above, raises triable factual issues about Defendant's malice.

E. Wrongful Demotion.

Defendant asserts that the wrongful-demotion claim fails because she had no authority to demote Plaintiff and did not request any adverse action. Procedurally, Defendant's reliance on demurrer standards under Code of Civil Procedure section 430.10 is inapplicable on summary judgment under section 437c. Beyond that, Defendant met her initial summary-judgment burden based on the attestation of Supervisor L. Solis that Defendant "never requested or demanded any pay reduction or demotion." [Defense Fact 14.] The burden now shifts to Plaintiff to show that triable factual issues exist. He met his burden under the CDC 101 Report, which was relied upon to justify the demotion, and was authorized by the supervisor who made the demotion. [Plaintiff's Response to Defense Fact 14.] Thus, there are triable factual issues as to whether Defendant's report was a substantial factor in the demotion, even if she lacked formal authority—nothing in *Doe v. County of Orange* (2025) 113 Cal.App.5th 1276, 1288, supports Defendant's argument that "substantial factor" cannot apply to an intentional tort. Indeed, California employs the substantial factor test for determining causation in intentional tort cases. [See *Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 391 (applying the substantial factor test in an intentional interference with contractual relations action).]

F. Intentional Infliction of Emotional Distress.

"The elements of the tort of intentional infliction of emotional distress are: (1) extreme

and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." [*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 (internal quotes omitted).] "Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community...The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result." [*Ibid.* (internal quotes and citations omitted).]

Defendant argues that Plaintiff lacks proof of Defendant committing any outrageous conduct or intending to cause severe emotional distress. Defendant met her initial burden by showing that her conduct was not outrageous because it was merely a report to supervisors and staff of CALPIA or the California Correctional Training and Rehabilitation Authority regarding Plaintiff's conduct that made her uncomfortable. [Defense Facts 5, 9.] Plaintiff met his burden of showing that triable factual issues exist based on Defendant's conversation with an inmate about Plaintiff, and Defendant was warned of the potential consequences. [Plaintiff's Exh. E.] These facts suffice to create triable issues. [*Christensen*, 54 Cal.3d at 903.]

G. Retaliation.

Plaintiff alleges that Defendant fabricated the sexual misconduct accusation in retaliation for Plaintiff telling her to cease performing improper sexual acts with another inmate. [FAC at ¶ 43.] In her motion, Defendant addresses a different theory—not the one Plaintiff pleaded—arguing workplace communications were privileged. Therefore, Defendant failed to shift the burden. Regardless, and assuming the common-interest privilege retroactively applies to this case, triable factual issues exist about the accuracy and dissemination of the accusations. [See Section B, *supra*.]

Conclusion.

For the foregoing reasons, Defendant's motion for summary judgment is **DENIED**. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.